

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

July 21, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Chamu vs. Potter 24-01422320	Demurrer to Amended Cross-Complaint Cross-Defendant and Plaintiff Simon Fuentes Chamu ("Cross-Defendant") demurs to the first cause of action for implied indemnity, second cause of action for contribution and indemnity, third cause of action for declaratory relief, and fourth cause of action for negligence as alleged in the First Amended Cross-Complaint. Cross-Defendant also notes that he is not named in the caption of the operative Cross-Complaint. Cross-Complainants Jeffrey Potter and Dawna Potter ("Cross-Complainants") oppose the Demurrer. The Court finds that the meet and confer efforts were insufficient. Prior to bringing a demurrer, "the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be

reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

Most importantly, “[a]s part of the meet and confer process, the demurring party shall identify all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies.” (Code Civ. Proc., § 430.41, subd. (a)(1).) Then, “[t]he party who filed the complaint, cross-complaint, or answer shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the complaint, cross-complaint, or answer could be amended to cure any legal insufficiency.” (Code Civ. Proc., § 430.41, subd. (a)(1).)

“The parties shall meet and confer at least 5 days before the date the responsive pleading is due.” (Code Civ. Proc., § 430.41, subd. (a)(2).) “If the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer.” (Ibid.)

Here, Cross-Defendant’s counsel testifies that he sent an email on May 12, 2026 advising Cross-Complainants that Cross-Defendant “intending to file a demurrer to the first amended cross-complaint because the first amended cross complaint is defective and appears to be for ROES.”

This meet and confer email is deficient for several reasons. First, the meet and confer did not take place “in person, by telephone, or by video conference.” Second, the email was sent on the same day that the demurrer was filed, which means that the meet and

		confer did not take place at least 5 days before the date the responsive pleading was due. Third, Cross-Complainants present evidence that the email did not “identify with legal support the basis of the deficiencies.” This meet and confer was insufficient. As such, Cross-Defendant is ORDERED meet and confer pursuant to code. Cross-Defendant shall file a declaration setting forth the meet and confer efforts and remaining issues to be determined by the Court following the parties’ code compliant meet and confer efforts. If Cross-Defendant does not file a declaration 9 court days before the continued hearing, the Court will consider the issues raised in the demurrer resolved and the Demurrer to the First Amended Cross-Complaint will go off calendar. The hearing on the Demurrer to the First Amended Cross-Complaint is CONTINUED TO October 13, 2026, at 10:00 AM. No further briefing, except for the Court ordered declaration discussed above. Moving party to give notice.
102	Murillo vs. Juicecrafters Inc. 26-01555793	Motion to Strike Portions Of Complaint Defendant JuiceCrafters, Inc. (“Defendant”) moves to strike Plaintiff’s claim for punitive damages. Plaintiff Marcantonio Murillo (“Plaintiff”) opposed the motion. Civil Code section 3294 states: “(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty